

Smt. Swathi Shrivastava Jain, vs Mr Manish Kumar Jain on 16 March, 2011

Author: B.S.Patil

Bench: B.S.Patil

_ L "W.

m" THE HIGH COURT mi' KARNATAKA AT BANGALORE
DATED THIS THE 16TH DAY or MARCH, 2911
BEFORE VJ VT
THE HOIWBLE MILJUSTICE B.s.1'A1i%A'i\$::i\$.i'rj'*: ~
WP.No.724o/2911__(GM+FC')*: 1'
BETWEEN: I A d 1 'V d V

Smt.Swai;.h1' Shrivastzwa. Jam,

W/0 Sri Manish Jain,

Aged about 31 years,

R/at No.5, ML1.n.nireddy...BuiIcf.ri:ig;

Kanahalli Bus Stop V ._ ' _ ~ . _

Bangalorew35. " PETITIONER

{By Srnii, . . 1.

AND:

Mr.Ma 111.51"; }'\$1_lir1éi;7A_ ...Ial'n\$

s/o E\ (Ir.N.K'.Jfajin. A _

Aged 38'

R/at Nu-.343, Kake._}3'eW~.Resi'dency,

Harfur VVi'1J_age,V Ha_rlu.r," ,

BaJ1.\$i'a101'e-I'2,_ RESPONDENT

V' _ [B\$ r.'SrE,.A'-Hemanthd 'Chandangoudar, Adv.)

\x3ritd'pei'.iti0n is filed under Articles 226 and 227' of

ihe" Cons'tj.'j_iUff;ion. of India praying to call for records in
M\$'€3.NQ_v.'3()/--2010 pending on the file of the II AddIrFam:iEy Caurt,

Bangalozfe and set aside the order dated 10.2.2011 in so far as

. ' .. granting' custody of the m1'n0'1' Child to the respondent Vide
AnmeXure--A and (:'.fi('..

This writ pefit ion coming on for hearing this day, the

Cerzrt made the foiiowingzw

ORDER

1. In a petition for d.issoIui,i.or1 of mar.1'iage filed by the respo'ndeI:i.--husband on the groimd of
(:'r'ue1'i,y _L1';t.1d'e::"=See"£,ioh .13{1}[ia) of the Hindu Marriage Act, 1955, an
.1a;;;%;p:i\$.«z;--i:1iijc;_xTi Ti1;{'i\:,¢.2 came to fied under Section 26 of ihebiriirzdti '=e;é=. on
respondentwhusbahd to restore the "

Sriansh from the petitioner\$yx;<i_fe. Vhbyitiie impugned order allowed. the
hoidding that the father of the minor was entitled for the custody ofihe of the petition.

The w1'i'e is 'custody of the mirior ehild to the respondeijt. 'VShe'is'i_gi\%ei':
visitation rights between 9 21.111. and The Wife is also held entitled to the eustociyiof
half of vacations during summer, d2;s_%i1'e and \x}ini;ef Vai"ai;ions. Agg□ved by
this order, the Wife a this Court by filing the present writ petition? .2; IL from the
pieadirigs and the order under ehalietige that the marriage between the pei'iti.oner
and ifeispondeni; was solemnized on 15.09.2004. Oui. of the wedlock, male child is
born on 085082005. The child is "now aged about 5% years. The maiirimoriiai for
divorce is filed on the

2 , w;'3;j;r""7 a'\$segat.io11s of er'ueit.y mavfle by the husioand against his wife. The wife has filed
C.MisiNo.607/2909 under Seetjori 125 Cr'.PC seeking iiiainlenanee of .Rs.40.000/~ per month.
these cases are clubbed. In fact, by the jI}1pL'lg1}€d ..o:d_e47,_l i't?;e"eoL1rt below while
direci.1'ng the wife to hand oveMr__th-e ::nsio(l3} 'of_th*e_ minor chiid to the husband, harsh
dii'e<:t.ed_ p-iayr_r_§e--nf:_oi'linterim_ maintenance of Rs.10,000/_~ per4'vnio1_1th
"wi¢Te.*onV.an application filed in this re_§,_§arCf'~h:j}'?'*iher. . ' 3, The main g1'ou1d..l:i"on
'lWh;ViehA:leo}1rt below has issued direction to the:-Awife o'w;:::,ith'é";L§s?;;;ay of the child to the
husband is «tif{elli.)ro}_{'isivo'ris""oi' Section 6 of the Hindu llAet\$...1l956, in case of a boy or .314
'the natural guardian and after him it is thelrhothev1* natural guardian. The proviso to the
se11'57§:&:.l..SleC~t:ior1 'a].so_w;fei%er1*ed which states that the custody of the completed the age
of 5 years shall ordinarily Enlothei". In the instant case, as the boy had Con;piev*1jed*the age of 5
years and was running 53/2 years at the H i.1'.me oilthe order, the fai.he1"s Claim, it is held was
required to be ljliifjiéiff□. Yet another aspect which the court below has taken " --riote of is that
admittedly wh.eii the wife was st.ay.ing in the wornezfs hostel for a period of eig§.h.t months
durgingg the year '3:

'V " _ fatiier. ..

/E 200809. the ehiid 'W8-5:? in the Custody of the h'L1Sbaf1d. The eeurt below héifi alsse taken. note of the fact. that. as the htlsband was Ewing w1'1.h his p21rent.s in his own house .a1r1dj;w;se.5:jrawi11g take home Salary of Rs,I_.O3.o€)()/-- on hisj€5i.*m,,f-aeditavisegion, whereas the wife was draw1'.11g Eesse::...V_ '\$'aVa2'3z:' of v ; a b . Q 1 , i i t _ R s . 1 . 1 _ . 5 0 0 / ~ p e r m o n t h , t h e i n t e r e e i O . f H 1 " I T _ , . e " 1 : 1 i i i F 3 § « . : e E 1 V é i d e _ _ \ \$ X z : : } 1 . i i : : i f e f f e c t i v e l y t a k e n c a r e o f b y t h e f 2 t t } & 1 e r " a 1 1 d f a t h e r ' \$ f v 3 ' ; S r f i e r e c a p a b l e t o l e o k a f t e r t h e e f t h e f i t i f i e z t e t t h t f □ □ t h a n t h a t o f t h e m o t h e r ' T h e c o ' L u * t ' ~ . } E ; e 1 0 3 ; & } h a s ; f £) l v 1 h d t h a t A h z t w i n g r e g a r d t o t h e p I ' € V i O L 1 S c u s t o d y o f e i i t □ d f a t h e r a t t h e t i m e t h e i i : . . t i 1 e < « . i > ' \ > e £ I _ ' 1 1 . e : _ 1 _ 1 _ i € § < « h o s t e i a n d t h a t s h e s u b s e q ' u e 1 ? ; t 1 ; y ' n s e e ' i ; i ' f e € ' 1 i t 1 ' ; . e - - e ' { z S . t ' e d j f ; Q f t h e c h i l d b y f i l i n g e r i m i n a i e o m p l y j e t t m e t t v h i s p a r e n t s f o r o f f e n c e s p u n t s 1 { ' a b t e -- 4 9 8 A & 5 0 6 r e a d w i t h S e c t i o n 3 4 E P C , _ . t h e e t i s t e d y . .) o f t ' h e e h 1 ' l d d e s e r v e d t o b e r e s t o r e d t o t h e t t e j a r d t h e l e a r n e d C o u n s e l F o r t h e p a r t i e s a n d m a t e r 1 ' ; ; d s o n r e c o r d ' H a v i n g r e g a r d t e t h e ' V . _ n a t u : * e t h e c o n t r o v e r s y r a i s e d a n d k e e p i n g " i n m i n d t h e a t : u : i t h e i n t i e r e s t o f t h e c h i i d , t h e p a : ' t 1 ' e s w e r e d i r e c t e d i s ' e é f i p i e r e t h e p e s S 1 T b i I i t . y e f s e t t i n g t h e i r d i s p u t e i n t h e r n a t . 1 " § r : 1 c : = n \$ a l . e a s e a n d a n : : r p p e m , 1 : 1 i ' i . y w a s p r { 3 \ ; ; i . d e d 7 t o t h e m . □ ' V V ' t . . ' V ;

i1'1€(il'€S3;'. anci We1'\$'ar<:% of izhsa ch□ and alga 3; .aE«;es nme Sf {he wishes and C1€3Si.E'E3 of the pE13"6I}'{.S. Accordiggiy, the _w;:i1 pei..ii.i03':

is partly aliowed madiijzing the if1pLIgI}_€d order. ..VV PKS